PROBLEMS OF DEFINITION: WHAT IS ORGANIZED CRIME?

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What do most people, or at least most Americans, think of when they hear, see, or read the term "organized crime"? What do they know about it? And from whence do they get their information? What about law enforcement practitioners, prosecutors, judges, and politicians? And, what about academics and journalists, the folks who study and write about organized crime? Agreeing upon a commonly accepted definition of just what is organized crime has been a continuing problem for both research and policy. The discussion that follows addresses various dimensions of this problem, looks at the implications, and makes certain recommendations.

From my own experience, any discussion of organized crime (usually occasioned by someone having read a news article or seen something on television), usually establishes that almost everyone, or at least everyone as represented by those with whom I have discussed it, has a view of organized crime. It is clearly not an obscure or esoteric topic. What then is the prevailing view? For the most part, it fits the stereotype that organized crime is synonymous with what many Americans conceive to be the Italian "mafia"—that is the Italian mafia in the United States, as opposed to that in Italy. Sometimes the so-called Russian mafia, or Chinese gangs or triads, or Colombian or Mexican drug traffickers are also mentioned. The main sources of information are the popular media—television, movies, newspapers, and magazines. Specifically, some people may have seen the movies in *The Godfather* series, or *Goodfellas*, or more recent films; but especially influential has been the American television show *The Sopranos*. News coverage is also influential in shaping the views of some. Rarely is there someone with firsthand information. And almost as rare is someone who has read a book about organized crime, usually a novel.

I suspect that this circumstance is neither unusual nor unique to the persons (including college and university students) with whom I am familiar. It is probably true of the vast majority of the American public; and given the ubiquitous presence of the American media abroad, of foreign publics as well. People around the world have, for example, seen *The Godfather* films. As my students often say, everyone knows about and has an "opinion" about organized

crime. Given this reality, it seems to me then that one of the major tasks facing researchers who study and write about organized crime is to inform (or better inform) those opinions, to challenge them, and especially to question the many existing stereotypes about organized crime. To do that, we must begin by defining just what it is we are talking about. And that is the subject of this paper.

In its 1986 report, the U.S. President's Commission on Organized Crime indicated that the problem in defining organized crime came not from the word *crime*, but from the word *organized* (p. 19). This had already been the conclusion of criminologist Thorsten Sellin more than 40 years ago. Such behaviors as murder, robbery, and theft—behaviors said to be *mala in se*, or wrong in and of themselves—are well defined and accepted as crimes. Other behaviors, such as prostitution, drug dealing, bribery, and gambling—behaviors that are *mala prohibita*, or wrong because they are prohibited—are less clearly defined but are also generally accepted as being crimes. All of these—and other crimes as well, such as hijacking, extortion, loan-sharking, bootlegging, fixing sports events, and smuggling—have come to be associated with and a part of what is commonly thought of as being organized crime.

A list of crimes does not, however, define what is organized crime. Why not? For one thing, it is because these offenses can be committed by criminals acting entirely alone, or by criminals acting in groups that would not be regarded as being criminal organizations. I will try to make this latter distinction clearer as we go along. This "thing," this phenomenon known as organized crime, cannot be defined by crimes alone. Any definition must address and account for the elusive modifying term *organized*.

Background

Two of the more informative syntheses of earlier work on the characteristics of criminal organizations in the United States were done by Frank Hagan (1983) and Michael Maltz (1985,1994). But several caveats are in order with respect to their efforts. These caveats do not mean their discussion is not useful, but rather that we should be mindful of its limitations and not give it more credence than it is due. First, the sources of Hagan's and Maltz's analyses have a definite U.S. bias—both in terms of what is being described and who is describing it. Second, many of those sources are by now rather dated. And third, even within the overall egocentric focus, there is an additional limitation arising from the further focus on a particular brand of American organized crime, namely the LCN or La Cosa Nostra.

Hagan identified 11 dimensions of organized crime. The similar attempt by Maltz suggested nine possible characteristics—some identical to Hagan's and others that are overlapping. I have partially integrated these two approaches and offer the following dimensions and characteristics as a beginning frame-

work for thinking about what organized crime is and what criminal organizations are. The framework has the following elements:

- ideology (or lack thereof)
- structure/organized hierarchy
- continuity
- violence/use force or the threat of force
- restricted membership/bonding
- illegal enterprises
- penetration of legitimate businesses
- corruption

From years of research on organized crime in the United States, the conclusion was reached that organized crime groups were *nonideological* in the sense that they did not have political agendas of their own. They were not terrorists dedicated to political change. They did not espouse a particular radical, liberal, conservative, or other political ideology. Their interest in government was only in its nullification—through bribery, payoffs, and corruption. According to this view, despite the fact that they may engage in killings, bombings, or kidnappings and despite the fact that they may exist within political groups, international terrorist organizations would not be classified as a form of organized crime. As Maltz recognized in his later work (1994), however, this particular distinction has become blurred over time. We have seen that criminal organizations may collaborate with terrorist organizations, and that terrorist groups may engage in crimes to finance their terrorist activities.

The blurring (between ideological and non-ideological) is very much evident in this more recent conclusion from the National Academy of Sciences:

> [T]errorism may be importantly connected to other kinds of transnational crime, either because some criminal groups are enlisted in terrorist acts, or terrorists themselves act for pecuniary as well as political motives, or because some terrorist groups use criminal means to achieve their nonmonetary aims (NAS, 1999: 6).

There was also earlier, a fairly widespread agreement that organized crime groups had a *well-structured hierarchy* with leaders or bosses and then followers in some rank order of authority. The latter included various associates, hangers-on, and would-be members. The members of the group engaged in conspiracies to commit crimes. Someone in the group was in a position to decide what would be done, by whom, how, and when. This sort of organization is indeed still found in some criminal groups. For example, outlaw motorcycle gangs have chapters generally consisting of a president, vice president, secretary/treasurer, and even a sergeant at arms, who are elected by the membership. This seems today, however, to be the exception rather than the rule. What we more commonly see are loosely affiliated networks of criminals who

coalesce around certain criminal opportunities. The structure of these groups is much more amorphous, free floating, and flatter, and thus lacking in a rigid hierarchy.

Continuity means that the group is self-perpetuating; it continues beyond the life or participation of any particular individual. Leaders who die or go to jail are replaced by new leaders. Others may drop out for various reasons, but the organization—just like its counterparts in the noncriminal world—continues. Maltz (1994) suggests that a criminal group's involvement in continuing enterprises (drug distribution, extortion, or gambling)—what he means by *continuity*—is one of the cohesive elements of a "true" organized crime group. This continuity is maintained over time and across crimes, and remains an important definitional element of what is truly organized crime.

Violence and the threat of violence are very much generally accepted as important dimensions of organized crime. Organized criminal groups use force or threaten its use to accomplish many ends. They engage in killings, beatings, burnings, and destruction. Violence is used against other criminals and against victims who don't pay for their drugs or don't pay off their bets or don't pay back their loans, and, it is used to frighten and intimidate extortion victims and potential competitors.

Criminal organizations generally *restrict membership* according to certain criteria. These may include such things as ethnicity, kinship, race, and criminal background. The LCN, Chinese gangs, and the Japanese Yakuza are examples of groups that are formed based on ethnic considerations. In the former Soviet Union, the *vory v zakone*, or thieves-in-law were formed in the prison camps of the Soviet Gulag. These professional criminals thus shared a common background and common circumstance. Membership in such criminal organizations as the Aryan Brotherhood or the Black Guerilla Family depends on both racial and criminal considerations. The sort of exclusivity characteristic of some criminal organizations also includes bonding rituals such as initiations, the wearing of colors, the use of signs, and so on.

It is widely agreed that organized crime exists for purposes of economic gain. Making a profit, through whatever means are considered necessary, is in fact the primary goal of organized criminal groups. This is, in part, why they are believed to be nonideological, and thus different from terrorist organizations. Profit can come from *illegal enterprises* such as drugs, gambling, or loan-sharking, but it can also come from legal businesses. For example, investing in restaurants or bars gains respectable social status and is also a good way to launder illegal money. Money laundering is a method of accounting for money obtained through illegal means. For example, money gotten through extortion can be shown in financial records for tax purposes as having been obtained through a bar business. Maltz (1994) indicates that there are many good reasons for organized crime groups to diversify into *legitimate businesses,* but that does not mean that all criminal organizations have legitimate

enterprises in addition to their illegitimate enterprises. This may be especially so when one examines transnational organized crime and/or organized crime in other countries.

The predominant forms of organized crime exist to provide goods and services that are either illegal, regulated, or in short supply. It is the presence of one or more of these limiting conditions, and a desire by a large enough segment of society for the particular goods and services that makes their provision a profitable business. Americans, for example, want drugs, sex, and gambling. In addition, some of us want to dispose of toxic wastes cheaply and quickly. Others want to obtain guns that have been outlawed or to adopt babies without having to go through a lot of bureaucratic red tape. Still others want to collect prematurely on life insurance policies. This tug-of-war between human desires, and human weaknesses, on the one hand, and laws, regulations, and morals, on the other, provides fat profits for organized crime. Francis Ianni and Elizabeth Ruess-Ianni (1976) focused on this particular dimension and described organized crime as representing "a means of producing and distributing those goods and services which are officially declared illegal—thus,—realistically, it represents an area of conflict between our desires and our morals" (p. xv).

Organized crime generally seeks to neutralize or nullify government by avoiding investigation, arrest, prosecution, and conviction through payoffs to the police, prosecutors, and judges. *Corruption* of public officials and the political process is thus very characteristic of organized crime, but may not be employed by every criminal group (See Maltz, 1994: 27). Payoffs enable organized crime groups to operate with immunity. Bribes or kickbacks to purchasing agents, union officials, politicians, and others facilitate organized crime's infiltration of legitimate business. The huge profits and the temptations and inducements that can be offered to relatively low-paid public servants undermine the efforts of law enforcement to combat organized crime. But even high-level officials and political figures are subject to corruption. This is particularly so in developing countries, and in countries that have suffered economic collapse and civil and military strife. Maltz (1994) suggests that only public sector corruption should be considered an element of organized crime.

Evidence that elements of this framework may still be very viable, and also applicable to analyzing organized crime elsewhere in the world, is reflected in a recent description of organized crime in China. He Bingsong described what he called underground criminal groups in China as having "an established leader," "core members," a "distinctly layered hierarchy," and a "set of procedures or an initiation ceremony for joining the organization" (Bingsong, 2003: 282). Thus, we should keep these characteristics and dimensions in mind as we explore and examine organized crime in both its national and transnational forms.

Why is Definition Important?

My premise is that definition is important, but at the same time we should recognize that in the case of organized crime, definition has been quite controversial. It is important because how the problem of organized crime is defined goes a long way toward determining how laws are framed, how investigations and prosecutions are conducted, how research studies are done, and, increasingly, how mutual legal assistance across national borders is or is not rendered. What they perceive organized crime to be, and how seriously they regard it, also determine the degree of the public's support for policies and resources to combat it. In general then, to the extent that there are substantial differences in opinions and views of what exactly organized crime is, to that extent each of the aforementioned practices, from law enforcement to research, is made more complicated.

An example of the difficulty in defining organized crime can be found in the work of the United Nations convention on transnational organized crime in the late 1990s. Seeking agreement on a definition indeed proved to be one of the most difficult issues for the negotiators, and they ended up with a very broad, sort of least common denominator definition (I will discuss this shortly).

Legal definitions in criminal statutes—in the United States and elsewhere—have been either nonexistent, constitutionally vague or indefinite, or overly broad. Various U.S. government commissions and investigative bodies—and likewise those in many other countries as well—have markedly differed in their definitions and, in some cases, have failed to define the phenomenon at all. And the relatively few academic criminologists who have studied and written on this topic have also differed dramatically in their conceptualizations.

According to the Law

Since crime is defined by law, it could be argued that the legal definitions of organized crime are the most important issue for definition. Definitions contained in criminal or civil statutes must target specific acts as being legally proscribed. They must sharply and narrowly define what behavior is to be subject to criminal or civil remedy. In the United States, criminals, whether organized or otherwise, cannot be prosecuted and punished simply because they have certain characteristics or belong to certain groups. They can only be prosecuted and punished because they have committed certain acts that are illegal. While it may be that the old adage, "If it looks like a duck, walks like a duck, and hangs around with ducks, then it is a duck," actually fits members of organized crime, no one—again in the United States at least—can be prosecuted just for looking like, walking like, or hanging around with members of organized crime groups.

This principle does not, however, hold everywhere. For example, in Italy, being a member of the mafia is itself a crime. Italy criminalizes membership in a "Mafia-type" association, which is defined as one in which "members systematically use intimidation and conditions of subjection deriving there from to commit crimes, to gain control over economic activities and to acquire unlawful advantages" (Adamoli et al., 1998: 6). Consistent with the latter notion, in the 2000 United Nations Convention Against Transnational Crime, participation in organized criminal groups is itself classified as a criminal act (See UN Convention on TOC). But even in the United States, things are not exactly crystal clear in this respect, as witness the RICO (Racketeer Influenced and Corrupt Organizations) Act of 1970, which I will address very shortly.

G. Robert Blakey, the father of the RICO concept, posed the issue of legal definition quite baldly: there was at that time, he said, "no generally applicable legal definition of concepts of 'organized crime,' 'corruption' or 'racket' or 'racketeering'" (President's Commission, 1986: 511). The legal definitions, according to Blakey, were (and are) often constitutionally vague or indefinite. They may violate constitutional rights to association and assembly. They may violate concepts of due process or equal protection. Or they may raise other civil liberties issues and problems. In any or all of these instances, criminal charges against suspected organized crime defendants can be dismissed or convictions overturned upon appeal. Keep in mind that this refers specifically to U.S. criminal procedure.

The only definition of organized crime contained in a U.S. statute is that in Public Law 90–351, the Omnibus Crime Control and Safe Streets Act of 1968:

> Organized crime means the unlawful activities of the members of a highly organized, disciplined association engaged in supplying illegal goods and services, including but not limited to gambling, prostitution, loan sharking, narcotics, labor racketeering, and other unlawful activities of members of organizations.

This statement defines organized crime somewhat in terms of its organization, but more so in terms of a list of crimes.

The difficulty arises when and if this particular definition is used as the basis for bringing criminal charges against a defendant or defendants. What, for example, constitutes a "highly organized, disciplined association" as opposed to a less highly organized, less disciplined association? This distinction is critical to separating the organized crime defendant from defendants who, as individuals, gamble, prostitute themselves, make loans for exorbitant interest rates, or sell drugs. Law enforcement can readily proceed against individuals charged with unlawful activities, but in this country at least, it is much less clear that it can proceed against individuals for being members of organizations, even when those organizations are suspected of being involved in unlawful activities.

Interestingly, but perhaps not surprising given the difficulties in so doing, the U.S. Organized Crime Control Act of 1970 (PL 91–452) did not itself define organized crime. Particular provisions of this act, especially the RICO statute, have been subjected to legal tests and appellate reviews to determine the constitutionality of their legal definitions. The reason why I indicated earlier that proceeding against an individual or individuals for being members of a criminal organization is not so clearly prohibited in U.S. law is that RICO indeed enables prosecutors to charge entire groups who are determined by prosecutors to be affiliated with a criminal enterprise. Individual liability is thus assumed if you are a member of the group. RICO also gives prosecutors the power to obtain a pretrial freeze and post-trial forfeiture of assets either used in or derived from a pattern of racketeering activity, and to seek stiffer penalties upon conviction. A "pattern of racketeering" has generally been defined as participation in any two incidents of whatever crimes are specified, for example, murder or theft, within a ten-year period.

Related to the legal issue, is the matter of what ought to be public policy with respect to organized crime. In considering this issue for the Council of Europe, for example, a so-called expert group said that the mandatory criteria for defining organized crime are: (1) collaboration of three or more people; (2) for a prolonged or indefinite period of time; (3) suspected or convicted of committing serious criminal offenses; and (4) with the objective of pursuing profit and/or power (Conseil de l'Europa, 1997).

Definition in the context of public policy is additionally important because it effects the allocation of financial and personnel resources to combat the problem of organized crime. Public policy making usually focuses upon such elements of definition as the nature of the problem, its magnitude, its seriousness, the rate of change over time, the persons affected by the problem, any geographical aspects, what responses have been attempted, projections of future scenarios, and what appear to be the sources or causes of the problem. Organized crime, where is exists, is clearly a public policy problem. Obviously, how it is viewed, how big a problem it is perceived to be, how serious it is, if it is seen to be growing, and who is being victimized by it, are going to shape the effort to combat it. Does it become a priority? Specifically, the perceptions of the public and of public officials are going to influence resource allocation.

Building the Knowledge Base

It is researchers and academics who attempt to understand and explain just what organized crime is; and they hope by doing so to inform the policymaking process just described. Definition is therefore also very important for them. The same is true of the journalists who study and write about organized crime. The latter are particularly influential because they especially help shape the

views and opinions of the general public, and often of public officials as well. Clearly, if we are to build a body of knowledge that is accumulated over time from a number of researchers and a variety of studies, there must be some common definition(s) to insure that we are all meaning the same thing.

Many scholars as well as journalists, from many countries, have worked on this issue over the years. Here we will point to just a few.

Donald R. Cressey served as a consultant to the 1967 U.S. President's Commission Task Force on Organized Crime. Cressey focused on organized crime in the United States, and his definition equated it largely with the Mafia/La Cosa Nostra. In his report to the Commission, Cressey criticized prior efforts of social scientists to define organized crime for not being concerned with formal and informal structure and for not attending to the anti-legal attitudes that permit engagement in a "continuous" or "self-perpetuating" conspiracy. Organized criminals, said Cressey, exhibit certain attitudes about the rules, agreements, and understandings that form the foundation of the criminal social structure. It is this social structure and these attitudes that differentiate organized crime and the organized criminal from other crimes and criminals.

Another consultant to that same President's Commission, Thomas Schelling, concluded that monopolization and extortion were the unique defining characteristics of organized crime. According to Schelling (1976), organized crime seeks to gain exclusive control or influence over criminal markets, and in doing so tolerates no competition—using violence or threats of violence to drive out competitors. By this definition, organized crime is most likely to be found in businesses that lend themselves to monopoly control.

Dwight Smith was one of those who criticized Cressey's definition of organized crime, saying it contributed to a "myth of the mafia." In his own work, (See e.g., *The Mafia Mystique* [1975]), Smith argued instead for a theory of illicit enterprise to explain organized crime. His economic approach put more emphasis on the activities (the criminal enterprise) than on the individuals or group(s) undertaking the enterprise. Organized crime, he said, is different from legitimate organized business only because its activities fall at a different place on a spectrum of economic enterprise. Organized crime is essentially an ongoing economic operation whose business is to provide illegal goods and services.

Similar to Smith's ideas in many respects were those of Joseph Albini (1971). Albini agreed that criminals involved in organized crime are illicit entrepreneurs. What he preferred to call "syndicated crime" consists, he said, of loosely structured patron-client relationships in which roles, role expectations, and benefits are a result of mutual agreement or obligation. This syndicated crime grows and thrives especially well in the United States, said Albini, because we demand illicit goods and services while maintaining a puritanical and suppressive façade. We are, in other words, hypocrites!

Francis Ianni and Elizabeth Ruess-Ianni, to whom I referred earlier, likewise focused upon U.S.-based organized crime, and therefore defined it in terms of the unique character of American society:

> [W]e have defined organized crime as an integral part of the American social system that brings together (1) a public that demands certain goods and services that are defined as illegal, (2) an organization of individuals who produce or supply those goods and services, and (3) corrupt public officials who protect such individuals for their own profit or gain (Ianni and Ruess-Ianni, 1976: xvi).

Among more recent students of organized crime, Peter Reuter defined it quite simply as the criminal activities of "gangs that have maintained a capacity for credible threats of violence over a long period of time" (Reuter, in Kelly, Chin, and Schatzberg, 1994: 96). From this definition, a "reputation" that enhances both extortive and corruptive capacity, and the "durability" of that reputation are the essential characteristics for criminal organizations to be effective in doing what they do.

William Chambliss (1978, 1988) described and theorized about what he called "State" organized crime. In doing so, he moved beyond the constraints of the unique character of American society and institutions to look more universally at what is organized crime, and at what might be universal causes of organized crime. Briefly, Chambliss said that criminal networks result from the responses of people in positions of power (including government officials) "to the contradictions that exist in the social structure of which they are a part" (Chambliss, 1988: 208). These contradictions occur in every society—or at least every industrialized society. Contradictions in what? Contradictions, for example, between what is required and what is possible, between what is wanted and what is available, between what is desired and what is legal, etc.

It is organized crime, according to Chambliss, that arises to help resolve these contradictions.

As the face of organized crime has become very much a global one over the past decade, and as we more and more focus on transnational forms of organized crime, new researchers are adding to our knowledge base and helping to explain organized crime elsewhere in the world. They include Ko-lin Chin (Chinese organized crime), Federico Varese (Russian organized crime), and Letizia Paoli (the Italian mafia), to name just a few. I commend their work to those interested in pursuing this subject.

Klaus von Lampe, a young German scholar who specializes in organized crime studies, summed up the definitional dilemma for those attempting to study organized crime as follows:

> Organized crime is neither a clearly discernable empirical phenomenon, nor do we find an agreement on what its "essence" or "nature" might be. Rather, a broad range of

> people, structures and events are in varying degrees and combinations subsumed under this umbrella concept. Due to this elusiveness, the phrase "organized crime" was allowed to take on an existence of its own quite independent from the social reality it supposedly relates to. Social scientists, then, not only face the challenge of nailing a "conceptual pudding" to the wall. They also have to deal with the duality of organized crime as a facet of social reality and as a social construct. In the latter capacity its associative and luring power strongly influences public perceptions, policy making and law enforcement towards a warlike attitude (von Lampe, in Duyne, von Lampe, and Passas, 2002:191).

In other words, the vagaries of definition—the "conceptual pudding"—allow stereotypes to gain a strong foothold. Then, absent solid rational-empirical evidence to refute them, these stereotypes and the myths that surround them proceed to drive public perceptions, public policy, and law enforcement practices with respect to organized crime. They also shape and constrain research and analysis.

Policies and practices grounded in myths and stereotypes are unlikely to succeed in the real world of criminal organizations and organized crime. And research that is biased by erroneous preconceived notions is unlikely to be informative and enlightening. Perhaps one of the best examples of this effect is the myths and stereotypes that surround a term that I have already mentioned—"mafia."

Organized Crime and the Mafia: Same or Different?

In the minds of many people, organized crime and what they know to be the mafia are synonymous terms and synonymous concepts. This perception is simplistic and incorrect. In addition, not only is equating organized crime and mafia incorrect, but it has certain negative consequences for policy and practice as well.

Having already devoted some considerable space to defining what is organized crime, with more to come, let us here focus on what is mafia. First, is there any such thing as mafia? Indeed there is! It is not, however a single entity, a single criminal group, or even a collection of criminal groups. Instead, mafia is a social construct. It is an idea. It is a cultural artifact. As such, it extends beyond the people, the places, and the activities that comprise it. There has to be a certain chemistry—an economic chemistry, a political chemistry, a geographical chemistry, a historical chemistry—that comes together to create the fertile soil necessary for the growth of the mafia. The well-known Italian legal scholar Adolfo Beria di Argentine put it this way:

> The Mafia is a rural Mafia and an urban Mafia; it is a power of material control of territory and it is a power of exploitation of local and national administrative and political circuits and of intangible international financial circuits; it is a culture of

> *omerta*, taking refuge in the environment of underdevelopment and it is a culture of unscrupulousness in diverse and sophisticated international circuits; it is violence for profit and it is a structure of power which pervades all other powers (di Argentine, 1992: 255).

Mafia scholar Henner Hess concluded that the mafia is a power structure, and as such is "completely different from what is commonly called organized crime" (Hess, 1973). I would not go quite that far! Instead, I believe that the mafia is very definitely a form of organized crime, but, and this is important, it is not the only form. Thus, the terms ought not be used interchangeably.

In their recent book on the Sicilian Mafia, Schneider and Schneider (2003) describe Sicilian mafiosi as being "entrepreneurial, opportunistic, aggressive, [and] capable of violence" (p. 46). These, of course, are characteristics that can describe many other criminals as well, of both the organized and unorganized kind. The Schneiders go on to explain how the mafiosi create local fraternal sodalities—what are called the *cosche*. "Legitimated through a charter myth and ideology of honor, these mutual aid fraternities obligate their members to be 'silent before the law,' while supporting them through whatever brushes they may have with the police, the judiciary, and the prisons" (pp. 46-47). It is these ideas of being men of honor, of silence or *omerta,* of supporting "made" members and their families when necessary, and especially of "wielding power through the systematic use of private violence" (Tilly, 1974: xiv) that distinguish the mafia and mafia-like structures from other kinds of organized crime.

As exemplified in the quote from Tilly, the mafia is unique in its strong exercise of a quasi-governmental role. It develops and assumes power where and when government cannot or will not exercise a monopoly on the use of violence. Governments exercise their monopoly on violence through such institutions as the police and the military, which are legally granted the power to use force, including lethal force, when necessary. But where governments are weak, or corrupt, or perhaps just terribly inefficient and ineffective, a power vacuum is created. As with any vacuum, it gets filled. And in certain societies—such as in Sicily or the former Soviet Union or certain areas of Eastern Europe—it has been a mafia that has assumed responsibility for such otherwise governmental functions as contracting for public works, dispute resolution (via an informal court system), and especially for providing protection Given that the mafia arises in a power vacuum to exercise the use of violence in place of the government, it stands to reason that mafias are less likely to develop in countries that are strong, stable democracies with robust institutions and a vibrant civil society. The United States is a good case in point. We have robust democratic institutions (including an effective police and military) and an active civil society, and thus historically there has been little inroad by the mafia per se (an exception might be the domination of large

segments of the legitimate economy in New York City during much of the twentieth century by the LCN—see Jacobs et al., 1999). At the same time, we have had more than our share of organized crime in a wide variety of forms. This, I believe, supports my point that organized crime and the mafia are not the same.

Organized Crime and Criminal Organizations

As I indicated earlier, a simple listing of crimes does not tell us much about organized crime. We know that crimes can be committed by individuals acting alone or together in groups. It is groups that provide one of the fundamental building blocks of organized crime. I prefer to think of groups as social networks—networks that are often small, informal, and short-lived. Obviously not all networks are criminal networks, in fact most are not. Everyone belongs to some number of social networks. They exist at work, at school, at church, and in the community. What some may have in common are a hierarchy of authority, a division of labor, and continuity. Criminal networks that have those characteristics we can call criminal organizations.

Whether a crime is committed by an individual or by a criminal network depends in part upon the nature of the crime, i.e., certain crimes literally cannot be committed by persons acting alone because of their complexity and multi-faceted nature. Whether a particular crime can be committed by a group or an individual is also dependent upon the nature of the situation and the availability of crime partners. So, if the nature of the crime and the situation demand it, and there are willing partners available, the crime may be carried out by a group. Further, this group can be considered to be a criminal network. What is important, however, is that unless the members of that network go beyond this single or limited criminal opportunity and actually organize themselves to continue to commit crimes; unless they actually view themselves as a criminal organization; unless they have or develop durability and reputation; and unless they have continuity both over time and over crimes, they are not a true criminal organization.

Criminal organizations can be envisioned as being arrayed across a spectrum based upon having a greater or lesser degree of the following characteristics:

- *Criminal sophistication*—What degree of planning is used in carrying out crimes? How long do individual criminal ventures last? How much skill and knowledge are required in carrying out these crimes?
- *Structure*—Is there a division of labor with clearly defined lines of authority and leadership roles? Does the structure maintain itself over time and over crimes?
- *Self-identification*—Do the participants in criminal activities see themselves as being members of a defined organization? Is there, for example, an emphasis upon bonding, such as the use of colors, special clothing, language, tattoos, initiation rites, etc.?

- *Authority of reputation*—Does the organization have the capacity to force others—whether criminals or non-criminals—to do what it dictates without having to resort to actual physical violence? In other words, is the organization's reputation sufficient to instill fear and to intimidate others?

As I indicated, criminal organizations can have more or fewer of these characteristics, but criminal networks that are totally or even substantially lacking in them, should not be considered true criminal organizations. Further, high-end organizations, that is those having more of this character, are the greater organized crime threat. Thus, while being at some risk of appearing to be tautological, we might define organized crime as being that crime that is committed by criminal organizations.

Organized Crime versus Crime That Is Organized

We should also recognize a distinction, for purposes of clearly defining what is organized crime, between certain crimes that may be extremely complex and highly organized in their commission—but which are not committed by criminal organizations, as we have defined them above—and true organized crime. I do not regard such crimes "that are organized" as being the same thing as organized crime. Some examples will illustrate the point.

In 2003, law enforcement officials in Long Island, New York cracked an insurance fraud ring (Healy, 2003). This ring was said to have staged thousands of car accidents, and then using its own entourage of doctors, lawyers, and others bilked an insurance company out of $48 million.

The grand jury returned 567 indictments in the case. Was this a highly organized crime? Absolutely! Altogether it involved hundreds of people operating in clearly defined roles, close to 20 bogus health care clinics, a considerable amount of planning and paperwork to carry it out, and it operated for more than two years. But was it a case of organized crime? I think not. Was the fraud ring a criminal organization with durability and reputation, whose members identified themselves as being members of a criminal organization, and that had continuity over time and over crimes? No, it was not. Did the ring seek in any way to gain monopoly control over its criminal market? No! Did it use violence? No! Did it use corruption (of public officials)? No! Among the indicted were doctors, psychiatrists, chiropractors, and dentists—themselves unlikely candidates to be members of organized crime.

Other than sophistication and structure, the ring seems to have none of the characteristics identified earlier as characterizing organized crime. Instead, this seems to be a classic case of the opportunistic creation of an entity to exploit a single criminal opportunity—entrepreneurship gone haywire in the form of a crime that is organized.

Another example of this distinction is in the work of Ko-lin Chin on the organization of Chinese human smuggling (Chin, 1998). Chin concluded from

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The frauds began with accidents in which a "runner" would recruit friends, relatives, or strangers, promising them $500 apiece for participating. The runner would load them into an inexpensive sturdy American car—usually an aging Cadillac or Lincoln—and drive onto a highway, then veer in front of an unsuspecting driver to cause an accident, usually a fender bender....

In the confusion, the driver would dart from the car and be ferried away in another automobile, leaving someone else to pose as the driver, in order to avoid being connected to a string of accidents. Sometimes, the getaway car would disgorge people who would later claim to have been in the accident....

The passengers then went to one of several counterfeit medical clinics ... that had been set up specifically to treat them.... The clinic management filed no-fault insurance claims and ordered a barrage of tests and procedures, sometimes performing them and sometimes not....

The clinics were financed by lawyers, accountants and other investors, although doctors [were] listed as the owners.

Each passenger could bring in $50,000.... [R]unners received $1,500 per "patient" while the "crash dummies" received up to $500 per crash. The lawyers who pressed the claims reaped one-third of the profits, and the clinic managers received another third (Healy, 2003).

his research that the human smuggling he studied was not organized crime, but indeed was rather a crime that is organized. "It is," he said, "a trade that needs organized participation and execution but it does not appear to be linked with traditional organized crime groups" (Chin, 1998).

Examples of this phenomenon can likewise be found in studies of drug trafficking networks by Natarajan and Belanger's (1998), in which they found organizational forms other than those that fit traditional conceptions of organized crime. These opportunistic forms included "freelancers," "family businesses," and "communal businesses." Eck and Gersh (2000) also found that drug trafficking was mostly done by a "cottage industry" of many small groups of traffickers—quick to form and quick to break up—rather than by large, hierarchically organized distribution networks.

With respect to the international trafficking of stolen vehicles, Clarke and Brown (2003) similarly concluded that such trafficking was highly likely to be carried out by small groups of entrepreneurs who are "employed in legitimate export businesses or in selling used cars and have discovered that they can exploit their knowledge and contacts to make large profits selling stolen cars overseas" (p. 209). Again, they seemingly have to be organized, but they are not organized crime.

Recalling the importance of reputation in defining organized crime, I firmly believe there is a danger, generally, in the promiscuous use of the label orga-

nized crime with reference to perpetrators of "crimes that are organized," and also with criminal networks that lack what we regard as the essential defining elements of being criminal organizations. This danger has been aptly pointed out by organized crime experts. For example, Beare and Martens (1998) pointed out that "bad reputation" is a valuable asset that permits criminals access to criminal markets that would, absent this reputation, be closed to them. Victims or potential victims who believe they are confronted by some omnipotent force called organized crime (or more especially mafia) are more fearful, more likely to succumb, and less likely to report to the police. Ironically then, misuse of the labels organized crime and mafia—by attaching them to what may be little more than "two-bit" criminal groups—adds to those groups' reputations for violence and actually increases their effectiveness in carrying out crimes. Therefore, law enforcement should not and, if is to be effective, must not, facilitate this perception and enhance the value of a bad reputation when it is undeserved.

Harms

Crime and criminal behavior cause harm. This is apparent in the notion that there are indeed crime victims—that is, people who have been harmed in some way by crime. They may have been physically hurt, such as by being assaulted or raped. They may have had their property stolen or destroyed. They may have been frightened, intimidated, and traumatized, and thus psychologically harmed. Then there are people who are simply fearful of crime even though they have not themselves been victimized. Such people—who often live in high crime neighborhoods behind locked doors, who are afraid to venture out into their neighborhood, who limit their enjoyment of activities such as shopping, going to a movie, or to visit with friends—are all victims. They are all being harmed by crime. The idea of harm, therefore, is very much a part of the conception of crime. It should also be very much a part of our conception of what is organized crime.

Obviously, individual criminals can cause harm—even great harm. In general, however, individuals acting in concert (such as in criminal groups) have a greater capacity for causing harm than do individuals acting alone. Recalling the previous discussion of criminal organizations, I pointed out that they may differ in their sophistication, structure, self-identification, and reputation. I would now extend that discussion further to argue that a criminal organization's capacity for causing harm is a function of these characteristics, along with their size and continuity. In other words, it is reasonable to believe (and this is something that could lend itself to empirical testing) that there is a positive correlation—the more of these characteristics the organization has, the more its capacity for harm. Where an organization falls on the spectrum of possessing these characteristics will, in other words, determine its harm capacity.

As indicated above, the harm caused by crime comes in a variety of forms. These include economic, physical, psychological, and societal harms (Maltz, 1990). Criminal organizations cause economic harm when, for example, they hijack goods from carriers or warehouses; when they gain monopoly control over certain businesses, thus driving up prices to consumers; when they add a so-called "mob tax" to the cost of doing business in areas under their control; and when they undermine the principles of a free market economy.

Physical harm from physical violence, and threats of same, by criminal organizations comes in the form of the extortion of businessmen, arson, beatings for the nonpayment of loans from loan sharks, kidnapping, and, most severely, in the murder of rivals or of policemen or other public officials such as prosecutors and judges.

Psychological harm flows from physical harm. The credibility of the reputation for violence creates a climate of fear and intimidation. This results in, for example, people being unwilling to report crimes to the police, and being unwilling to serve on juries or perform other civic duties. Leoluca Orlando, the former mayor of Palermo, Sicily describes how thoroughly cowed the citizenry of Palermo was by their fear of the Sicilian Mafia (Orlando, 2001). Psychological harm can also result in feelings of powerlessness and cynicism about the ability and willingness of government to protect victims or potential victims from criminal harm.

Finally, societal harm comes in the form of the undermining of society's legal and political systems. The political process may be compromised because organized crime pays bribes for public contracts, because it finances candidates for public office, or even (as in Russia) runs its own candidates for office. This most insidious form of harm results from the corruption of law enforcement and the other institutions of society, and the undermining of the rule of law. These effects are not of a kind likely to be caused by individual criminals acting alone or even by small, unsophisticated criminal groups. They are, instead, among the most negative of the impacts of true organized crime.

Transnational Organized Crime: The New Menace

I have already mentioned that the nature of organized crime has changed dramatically in especially the past two decades. The expansion in the idea of what is organized crime can be attributed to a number of factors (See, e.g., the report of the Committee on Law and Justice, National Research Council, 1999). These factors include the globalization of the economy. Goods and services move much more readily across national boundaries than they did a decade or so ago. Perhaps even more importantly, so do people. This means that businesses and travelers have much more contact with other countries than ever before in history. These countries include the multitude of countries of Eastern Europe and the former Soviet Union that were for generations confined behind the Iron Curtain.

Secondly, there has been an enormous increase in the number of immigrants—legal immigrants, but also persons who are voluntarily smuggled across national borders, and victims of human trafficking who are transported by criminals from one country to another. Human smuggling and trafficking have both become highly visible forms of transnational crime.

Third, tremendous advances in communications technology have made national borders permeable, and in some cases irrelevant in impeding or controlling the flow of communications. Using cell phones to communicate with crime partners, various forms of cybercrime, identity theft, and the wire transfer of stolen funds are just some examples of how transnational criminals use this new technology. And fourth, it is improvements in global transportation that facilitate the increased movement of people and goods around the world. No country, including the United States, can any longer rest secure from transnational crime behind its national borders.

What exactly is transnational crime? The United Nations (1995) defined it as "offenses whose inception, prevention and/or direct effect or indirect effects involved more than one country." This definition seems to include any offenses of any kind, although the examples put forth by the UN specifically include such things as organized crime, corruption, the theft of cultural artifacts, crime associated with migration, the trade in human body parts, and environmental crimes. As with other efforts to define organized crime discussed earlier, this new concept of *transnational* organized crime (TOC) similarly seems to suffer from the fact that at least some of the crimes mentioned can be committed by individuals, or by groups of individuals who would not qualify as being a criminal organization, or they may be crimes that are organized, but not organized crime.

The United Nations Convention against Transnational Organized Crime (2000) struggled mightily with the definition problem, as I mentioned earlier. Agreement ultimately was reached on what is an "organized crime group," and what is "transnational crime."

> [A]n organized crime group is a "structured group of three or more persons existing for a period of time and acting in concert with the aim of committing one or more serious crimes or offences in order to obtain, directly or indirectly, a financial or other material benefit." By "serious crime" is meant "conduct constituting a criminal offence punishable by a maximum deprivation of liberty of at least four years or a more serious penalty."
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> [A]n offence is transnational if "(a) It is committed in more than one state [i.e., country]; (b) It is committed in one state but a substantial part of its preparation, planning, direction or control takes place in another state; (c) It is committed in one state but involves an organized criminal group that engages in criminal activities in more than one state; or (d) It is committed in one state but has substantial effects in another state" (*Trends in Organized Crime*, Winter 2000: 48-49).

Transnational organized crime (TOC), on a large scale, is the new reality. But we should not assume, as some who have written about are want to do, that it never existed before the end of the twentieth century. On the contrary, the description above could have been applied quite readily to, for example, pirate groups roaming over international waters in the sixteenth century. What is different is the scale, the magnitude of the problem, the sophistication of the criminals, and the capacity for harm that some of these transnational criminal organizations have—thus a characterization of TOC as the "new menace" seems especially apt.

Conclusion

I hope that I have convinced you that a clear and focused definition of organized crime is important. It is important as a legal definition and for public policy purposes, but it is especially important for research purposes as well. After all, it is the fruits of the latter research that will inform the former definitions. Related to the general definition, critically important are the distinctions between key concepts such as organized crime and crimes that are organized, between organized crime and mafia, between criminal organizations and other types of criminal groups, and between organized crime and transnational organized crime.

So what is organized crime? Again, I would repeat that the difficulty lies with the word *organized*. The attributes of the criminal organizations that make the crimes they commit organized crime include criminal sophistication, structure, self-identification, and the authority of reputation, as well as their size and continuity. These criminal organizations exist largely to profit from providing illicit goods and services in public demand or providing legal goods and services in an illicit manner. But they may also penetrate the legitimate economy, or in the case of the mafia, assume quasi-governmental roles. However they choose to do it, and whatever they choose to do, their goal remains the same—to make money, as much as they can. Sometimes that can mean seeking political power in order to facilitate their greed, but the bottom line is the same.

The members of a criminal organization may comprise a crime family, a gang, a cartel, or a criminal network, but those labels are not important to the definition. These members may also share certain ethnic or racial identities; but that too is not essential to their being defined as a criminal organization engaged in organized crime. What is essential to the definition of organized crime is the ability to use, and the reputation for use of violence or the threat of violence to facilitate criminal activities, and in certain instances to gain or maintain monopoly control of particular criminal markets. Also essential is that organized crime employs corruption of public officials to assure immunity for its operations, and/or to protect its criminal enterprises from competi-

tion. It is these that are the defining characteristics of organized crime and that best answer the question of just what organized crime is.

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